

RESIDENTIAL TENANCY RIGHTS

A Reference for Tenants and Housing Practitioners

This guide is for illustrative purposes only and provides general educational information about tenant rights; it should not be considered an official document or construed as legal advice.

Laws and regulations change frequently, and specific circumstances may require different legal analysis. For guidance on specific situations, consult qualified legal counsel or contact the appropriate government agencies.

CHAPTER ONE: HOUSING CLASSIFICATIONS AND REGULATORY FRAMEWORKS

The residential rental landscape is governed by a layered and often complex matrix of statutory protections whose application depends critically upon the classification of the housing in question. The category of housing in which a tenant resides—whether subject to primary-tier rent regulation, secondary-tier rent regulation, publicly financed, or privately unregulated—determines the specific rights the tenant may invoke, the obligations imposed upon the landlord, and the administrative or judicial mechanisms available for enforcement. Because some residential units may simultaneously fall within multiple regulatory categories, and because a substantial body of general protective law applies across all residential tenancies regardless of regulatory status, identifying the applicable framework is an essential threshold inquiry for any tenant seeking to understand and assert their rights.

Section One: Regulated Residential Tenancies

Two primary systems of rent regulation exist within the residential housing market: primary-tier rent regulation and secondary-tier rent regulation. These regulatory frameworks serve complementary but structurally distinct functions. Both systems are designed to prevent arbitrary or excessive rent increases and to protect tenants from displacement, but they operate through different mechanisms, apply to different categories of housing, and confer different degrees of legal protection. A tenant's rights under either system are determined by a combination of the building's age, size, and location, as well as the specific history of the individual tenancy.

Subsection A: Primary-Tier Rent Regulation Scope, Structure, and Protections

Primary-tier rent regulation represents the older and more restrictive of the two regulatory systems. Its foundational purpose is twofold: to place a ceiling on the rent that a landlord may lawfully demand, and to substantially curtail the landlord's ability to evict long-standing tenants. Together, these protections afford qualifying occupants a degree of housing security that is among the strongest available under residential tenancy law.

The applicability of primary-tier rent regulation is circumscribed by several objective criteria. Generally, only residential buildings constructed before January 1, 1968, located in municipalities that have formally recognised and have not subsequently terminated a rental housing emergency, fall within the scope of this regulatory tier. To qualify as a protected primary-tier regulated tenant, the person occupying the unit—or a lawful successor such as a surviving spouse, qualifying family member, or adult lifetime partner—must have maintained continuous residency in the apartment since before July 1, 1983. Continuous occupancy is interpreted strictly; any voluntary or involuntary gap in occupancy may constitute an

abandonment of primary-tier regulated status, with potentially irreversible consequences for the tenancy.

When a primary-tier regulated unit is vacated and no qualifying successor remains, the unit does not enter the unregulated market in most localities. Instead, it transitions to secondary-tier regulation upon vacancy—a mechanism that preserves a regulated status over the housing stock even as tenancies turn over, ensuring that the public interest in affordable housing is not eroded through attrition.

The economic structure of primary-tier rent regulation is built around two interlocking metrics. Each primary-tier regulated apartment is assigned a Maximum Permitted Rent (MPR)—a calculated ceiling rent reflecting the landlord's legitimate and documented operating costs which is subject to adjustment every twenty-six months to account for documented changes in expenses such as property taxes, fuel, labour, and maintenance. However, the amount a tenant may actually be required to pay at any point in time is bounded by the Maximum Chargeable Rent, which is recalculated annually and set at the lower of two benchmarks: either the rolling average of the Residential Rent Assessment Board orders for one-year leases over the preceding eight years, or an absolute ceiling of seven percent. This dual-metric structure serves as a practical brake against rapid rent escalation, ensuring that increases to the Maximum Permitted Rent do not automatically translate into equivalent increases in what tenants must actually pay.

Primary-tier regulated tenants retain the right to formally challenge proposed rent increases in several enumerated circumstances: where the Maximum Chargeable Rent would exceed the legal regulated rent for the unit; where the building carries outstanding housing code violations; where the landlord's documented expenses do not substantiate the proposed increase; or where the landlord has failed to maintain essential services—such as heat, hot water, elevator service, or garbage removal—at the levels required by law. These challenge rights function as a meaningful accountability mechanism, ensuring that rent adjustments are grounded in legitimate operational necessity rather than opportunistic market extraction.

Subsection B: Secondary-Tier Rent Regulation Eligibility, Economics, and Entitlements

Secondary-tier rent regulation is the broader of the two regulatory systems and governs a substantially larger portion of the residential rental market. An apartment is generally subject to secondary-tier regulation if it is located in a building constructed before January 1, 1984, that contains eight or more residential units. Apartments formerly subject to primary-tier regulation that became vacant without a qualifying lawful successor also transition to secondary-tier regulation. Additionally, apartments in buildings containing five or more units that were constructed or substantially rehabilitated on or after January 1, 1984, may fall within the

secondary-tier regulatory system where such buildings received special tax benefits in connection with their development or renovation.

Unlike primary-tier regulation, which ties permissible rent levels to building-specific cost calculations, secondary-tier regulation employs a market-informed regulatory model. Permissible rent increases are determined annually by local Residential Rent Assessment Boards, which assess prevailing economic conditions, building operating costs, and residential market dynamics before issuing percentage orders applicable to one-year and two-year lease renewals commencing each September. This structure produces rent increases that are responsive to macro-economic conditions while remaining subject to regulatory oversight rather than unconstrained market forces.

Tenants in secondary-tier regulated apartments are the beneficiaries of a comprehensive set of statutory protections. They are entitled to receive all essential building services including heat, hot water, elevator maintenance, and general upkeep at the levels that existed at the commencement of the tenancy. They are entitled as of right to renew their leases upon the same terms and conditions as the expiring lease, with permissible rent adjustments applied in accordance with the relevant Residential Rent Assessment Board order. And they may not be removed from their homes except on grounds specifically enumerated in the applicable regulatory code most commonly non-payment of rent, substantial lease violations, illegal use, or certain limited categories of owner use.

Independent municipal authority exists to create local secondary-tier rent regulation frameworks where local conditions warrant. Two preconditions must be satisfied: the local government must formally declare the existence of a residential housing emergency, and the residential vacancy rate within the municipality must have remained below four percent for two consecutive annual reporting cycles. This threshold reflects the legislative judgment that a vacancy rate below four percent signals a market condition sufficiently acute to justify governmental intervention in the private rent-setting process.

Section Two: Publicly Financed Residential Housing

Publicly financed housing encompasses a spectrum of residential programmes that have been developed or subsidised with governmental resources at the national, regional, or municipal level. These programmes exist to address the housing needs of income-qualified individuals and families who cannot otherwise afford adequate housing in the private market. Access to such programmes is conditioned upon satisfying prescribed income thresholds generally not exceeding one hundred twenty percent of the applicable Regional Median Income (RMI) benchmark established by the competent housing authority along with criteria relating to household size and the size of the available unit.

Subsection A: Public Housing Administration and Tenant Rights

Public housing is a nationally funded programme administered through government-chartered local housing authorities, which develop, own, and manage the residential properties under a concurrent framework of national, regional, and local regulation. Because public housing tenants are recognised as holding a legally cognisable property interest in their continued occupancy, they are entitled to procedural protections before any termination of tenancy may be effected.

A public housing tenant facing termination for cause is entitled to an administrative grievance proceeding, which must be conducted within thirty-five days before the termination takes effect. This hearing affords the tenant the opportunity to contest the grounds for termination, present evidence and witnesses, and be heard by a neutral decision-maker rights that reflect the constitutional dimensions of due process applicable in the administrative context. However, a significant exception applies: where the grounds for termination are nonpayment of rent, the housing authority is not obligated to conduct a grievance proceeding and may proceed directly to court. This exception is premised on the view that nonpayment claims are sufficiently straightforward and objective to be resolved through the courts without the same procedural safeguards required for more subjective grounds of termination.

Subsection B: Government-Administered Subsidy Programmes Structure and Eligibility

Beyond direct public housing, national law authorises a range of rental and mortgage subsidy programmes designed to facilitate housing access for households that cannot compete effectively in the private rental market. Eligibility is generally confined to low-income families earning not more than fifty-five percent of the applicable Regional Median Income, as well as displaced families, elderly households, and persons with qualifying disabilities populations identified by the legislature as disproportionately vulnerable to housing instability.

Assistance is typically delivered in the form of a housing assistance payment that bridges the gap between the tenant's ability to pay and the approved reference market rent for the unit as determined by the competent authority. Under the standard formula, the tenant's share is set at approximately thirty percent of the household's adjusted gross income, and the subsidy covers the remainder up to the unit's approved reference market rent. This structure ensures that the tenant's housing cost remains proportionate to income regardless of market fluctuations, while participating private landlords receive full market-rate compensation.

Section Three: Specialized Residential Classifications

Several categories of residential housing fall outside the conventional apartment building framework and are governed by purpose-built regulatory regimes tailored to their particular characteristics and the unique vulnerabilities of their occupants.

Manufactured and mobile home parks are subject to dedicated statutory provisions and oversight by the Department of Housing Standards. The distinct legal position of manufactured home residents—who typically own their dwelling unit while renting the land beneath it—necessitates a regulatory framework addressing park rules, land rent increases, and eviction procedures that differ materially from those applicable to conventional apartment tenancies.

Loft housing in formally designated loft districts is governed by specialised provisions of the applicable Multi-Unit Residential Properties Code, reflecting the distinct legal and physical characteristics of residential occupancy in spaces originally designed for commercial or industrial use. Compliance is overseen by local Loft Boards with authority to adjudicate disputes between loft owners and occupants regarding the rights and obligations arising from such occupancies.

Residential hotels—buildings that may serve both transient and long-term occupants—may be subject to secondary-tier rent regulation where the occupancy meets applicable statutory thresholds. The classification of an occupant as a residential tenant entitled to such regulatory protections, as opposed to a transient hotel guest without such entitlements, turns on the nature, terms, and duration of the occupancy arrangement.

CHAPTER TWO: FORMATION AND GOVERNANCE OF THE RESIDENTIAL LEASE

The lease agreement is the foundational legal instrument of the landlord-tenant relationship. Its terms define the mutual rights and obligations of the parties for the duration of the occupancy, and deficiencies in its formation, content, or execution carry significant legal consequences for both sides. A thorough understanding of lease law—including what a lease must contain, what it cannot contain, and how its terms may be modified or enforced—is essential for tenants and landlords alike.

Section One: The Nature and Legal Formation of a Lease

A residential lease is a legally binding bilateral contract under which a landlord grants a tenant the right to occupy and use a defined residential premises for a specified period in exchange for the payment of rent. As a contract, a lease requires the genuine mutual agreement of both parties and is not susceptible to unilateral modification once executed. Any change to the terms of an existing lease during its period of operation requires the affirmative consent of both the landlord and the tenant and should be documented in writing, with the initials of both parties affixed to the modified provision to authenticate their mutual acceptance.

For apartments outside the rent stabilisation system, a lease may be oral or written. Written agreements are strongly advisable because they create an unambiguous record of the agreed terms, reduce the risk of disputed interpretations, and are far more readily enforceable in adversarial proceedings. The general law of written contracts mandates that any oral lease for a term exceeding thirteen months is legally unenforceable. Accordingly, any tenancy intended to extend beyond thirteen months must be committed to writing and signed by the parties to be binding. Only parties who have signed the lease are contractually bound by its terms, making the identification of signatories particularly important in shared tenancy arrangements.

Section Two: Mandatory Lease Contents

A valid residential lease must, at minimum, identify the leased premises with sufficient specificity; provide the full legal names and current addresses of all parties; specify the amount of rent and the schedule on which it is due; state the duration of the tenancy by reference to defined commencement and termination dates; articulate the conditions of permitted occupancy; and set forth the rights and obligations of both parties concerning maintenance, use, access, and other material matters. In regulated tenancies, additional mandatory disclosures and contents supplement these baseline requirements.

Section Three: Mandatory Requirements for Secondary-Tier Regulated Leases

Tenants in secondary-tier regulated apartments are entitled to additional procedural safeguards in connection with lease execution. Once a tenant has signed and returned the lease to the landlord, the landlord must provide the tenant with a fully executed copy bearing both parties' signatures within forty-eight days of receiving the tenant-signed document. Failure to do so may have consequences for the landlord's ability to enforce certain lease terms. The lease must clearly state both its commencement and termination dates. Additionally, the tenant must receive a regulated tenancy disclosure rider a standardised supplemental document that summarises the tenant's statutory rights and explains precisely how the rent stated in the lease was calculated, including any increases applied over the previously registered rent.

Section Four: Plain Language and Readability Standards

All residential leases are required by law to be drafted in plain, everyday language that is accessible to a person without legal training. Sections of the lease must be captioned in a manner that allows tenants to identify relevant provisions without difficulty. The body text must be set in a minimum typeface of eleven-point font to ensure physical legibility. These standards reflect the legislature's recognition that lease agreements are frequently presented to prospective tenants on a take-it-or-leave-it basis with limited opportunity for negotiation, and that leases written in technical legal jargon create an informational imbalance that the law seeks to correct.

Section Five: Clauses Rendered Void by Operation of Law

Certain categories of lease provisions are rendered void and unenforceable as a matter of public policy, irrespective of whether the tenant ostensibly agreed to them at the time of signing. These provisions cannot be enforced even if both parties signed a lease that contains them.

Any clause exempting a landlord from civil liability for personal injury or property damage caused by the landlord's own negligence is void. Equally void is any provision purporting to waive the tenant's right to a jury trial in personal injury or property damage litigation a protection that preserves the tenant's constitutional entitlement to have such claims determined by a jury. A lease may not require a tenant to pledge household furnishings or personal property as collateral security for the payment of rent. Any clause purporting to relieve the landlord of the duty to take reasonable steps to re-let a vacated unit when a tenant departs early is prohibited. Waivers of the implied Warranty of Habitability the legally embedded guarantee that the premises will be maintained in a livable, safe, and sanitary condition are void in all forms. Finally, any lease provision restricting a tenant's right to share the premises with immediate

family members, one additional occupant, or that occupant's dependent children is unenforceable.

Section Six: Attorney's Fees and Judicial Oversight of Unconscionable Terms

Where a lease contains a provision entitling the landlord to recover attorney's fees in the event of legal proceedings arising from the tenancy, the tenant automatically acquires a legally equivalent reciprocal right to recover attorney's fees upon prevailing in any such proceeding. This mutuality rule prevents landlords from using one-sided fee-shifting provisions as a litigation weapon against tenants with otherwise meritorious positions.

Courts retain authority to refuse enforcement of a lease or any individual clause where it is determined to have been unconscionable at the time of its making meaning so one-sided, oppressive, or fundamentally unfair as to offend basic principles of equity, particularly when considered in light of the disparity in bargaining power between the parties. A court making such a finding may decline to enforce the lease entirely, excise the offending clause while enforcing the remainder, or limit the application of the clause in a manner sufficient to avoid an unconscionable outcome.

Section Seven: Lease Renewal Rights, Obligations, and Procedures

Subsection A: Renewal in Non-Regulated Tenancies

In the unregulated rental sector, a landlord is under no statutory obligation to offer a lease renewal at the expiration of the current term. The decision to renew is a matter of landlord discretion. However, landlords who include automatic renewal clauses provisions under which the lease renews for an additional term unless the tenant provides timely notice of an intention not to renew are required to furnish the tenant with written notice of the existence and operation of that clause. This notice must be delivered between twenty-two and forty-eight days before the date by which the tenant must exercise their right not to renew, ensuring that tenants are not inadvertently bound to a renewal they neither intended nor anticipated.

Where a landlord proposes to increase rent by more than five percent, or elects not to renew the lease at all, advance written notice is required. The required notice period is calibrated to the length of the tenancy: tenants in occupancy for twenty-four months or more or whose lease term was twenty-four months or longer are entitled to ninety-five days' notice. Tenants who have resided in the unit for more than thirteen months but fewer than twenty-four months are entitled to sixty-five days' notice. Tenancies of thirteen months or less require thirty-five days' advance notice.

Subsection B: Renewal in Secondary-Tier Regulated Tenancies

Tenants in secondary-tier regulated tenancies enjoy a substantially stronger renewal framework rooted in statutory entitlement rather than landlord discretion. The landlord is legally required to offer the tenant a renewal lease upon the same terms and conditions as the expiring lease, subject only to such modifications as are mandated by law or regulation. Where the landlord has received a government housing subsidy, the obligation to provide or accommodate that subsidy must be carried forward into the renewal lease.

The renewal offer must be delivered to the tenant in writing by mail or personal delivery no fewer than ninety-five days and no more than one hundred fifty-five days before the expiration of the current lease. Upon receiving the renewal offer, the tenant has sixty-two days within which to accept it. If the tenant fails to respond within that window, the landlord may decline to renew and may initiate court proceedings to recover possession. If the tenant accepts the renewal offer, the landlord must provide a fully executed copy of the renewal lease within thirty-two days of the tenant's acceptance. Renewal may be lawfully refused only on grounds specifically enumerated under the applicable code most commonly where the tenant is not using the unit as a primary residence.

Section Eight: Month-to-Month Tenancies

Non-rent-regulated tenants who pay rent monthly and who do not hold a currently operative written lease whether because they never had one, or because their lease has expired and the landlord has continued to accept rent are classified as month-to-month tenants. Either party may terminate a month-to-month tenancy, provided the required notice is given. A landlord terminating such a tenancy need not state a reason, but the notice must clearly state that the tenancy is being brought to an end and that failure to vacate will result in formal court proceedings for possession. Termination notice alone does not authorize physical removal of the tenant a court judgment and warrant of eviction remain prerequisites to any lawful dispossession.

Rent increases in a month-to-month tenancy require the tenant's consent. If the tenant declines to accept a proposed increase, the landlord's available recourse is to terminate the tenancy through proper notice and re-let the unit at the desired rate to a new occupant.

CHAPTER THREE: RENT OBLIGATIONS, ADJUSTMENTS, AND DEPOSIT LAW

Section One: Establishment of Rent

In unregulated residential tenancies, rent is fundamentally a product of private negotiation between landlord and tenant, and the law imposes no ceiling on the amount that may be agreed. The parties are free to contract at whatever amount the market and their respective circumstances will support. In rent-regulated tenancies, by contrast, the initial legal rent and all subsequent permissible increases are determined by the applicable Residential Tenancy Regulation Code and the annual orders of local Residential Rent Assessment Boards. Regulated tenants have the right to challenge their rent at any time. The period during which recovery for overcharged rent may be sought is forty-nine months for complaints filed before January 1, 2025, and seventy-four months for complaints filed on or after that date.

Section Two: Late Payment Fees

Rent is not legally considered late until it has been received more than eight days after the contractual due date. This grace period is a statutory protection that cannot be waived by lease agreement. Once rent is properly deemed late, the maximum permissible late fee is the lesser of forty-five dollars or four percent of the monthly rent. A landlord who fails to provide required notice regarding late fee policies may find that deficiency asserted as an affirmative defense in any subsequent nonpayment proceeding.

Section Three: Documentation of Rent Payment

Landlords are required to issue written receipts when rent is paid by cash, money order, cashier's check, or any payment instrument other than the tenant's personal check. Tenants who pay by personal check may request a written receipt; after one such written request, the landlord is obligated to furnish receipts on a monthly basis on an ongoing basis. Each receipt must reflect the date of payment, the amount received, the rental period covered, the apartment number, and the signature and title of the individual receiving the payment. All documentation of cash receipts must be preserved by the landlord for thirty-eight months.

Section Four: Rent Adjustments

Subsection A: Non-Regulated Units

In unregulated tenancies, a landlord may increase rent subject to the requirement of providing adequate advance notice where the proposed increase exceeds five percent of the current rent.

The applicable notice period ranging from thirty-five to ninety-five days depending on the duration of the tenancy mirrors the notice requirements applicable to non-renewal situations, and failure to provide timely notice may render the increase ineffective for the relevant period.

Subsection B: Secondary-Tier Regulated Units

In secondary-tier regulated tenancies, permissible increases are set each year by local Residential Rent Assessment Boards. Significant amendments effective January 1, 2022, substantially limited the bases on which regulated rents could be increased between occupancies. The vacancy bonus previously permitting a fifteen percent increase upon re-letting a secondary-tier regulated unit was abolished. The longevity bonus, which had previously rewarded landlords with an additional increase upon the departure of a tenant of eleven or more years, was similarly eliminated. High-rent deregulation under which a unit could exit the secondary-tier regulatory regime upon vacancy once rent reached a defined threshold has been generally prohibited. Deregulation based on household income exceeding a statutory threshold for two consecutive years has likewise been largely foreclosed. Units that were lawfully deregulated prior to July 1, 2021, generally remain deregulated, but tenants who have reason to believe their unit was improperly removed from regulation may obtain the unit's rent history from the Residential Tenancy Regulatory Office and file a formal challenge.

Section Five: Capital and Individual Improvement Surcharges

Subsection A: Whole-Building Capital Improvement Surcharges

A landlord in a rent-regulated building who undertakes a qualifying Whole-Building Capital Improvement a building-wide capital expenditure such as the replacement of a boiler, roofing system, plumbing, or central heating infrastructure, with a useful life exceeding twelve years may apply to the relevant administrative authority for a rent increase to recoup a portion of the cost. The permissible annual rent increase is capped at two percent for buildings with thirty-eight or more units, and at two and one-half percent for buildings with thirty-seven or fewer units. The authorised increase is not permanent: it is a time-limited surcharge that expires and is removed from the legal regulated rent after three hundred sixty-five months just over thirty years from the date the increase was authorised.

Authorisation for a whole-building capital improvement surcharge will not be granted where the building carries any outstanding Category 3 (hazardous) or Category 1 (immediately hazardous) violations at the time of application, or where fewer than forty-two percent of the building's units remain subject to rent regulation. All outstanding violations must be corrected before the administrative authority will consider granting the increase.

Subsection B: Individual Unit Upgrade Surcharges

A landlord who performs qualifying improvements to an individual regulated apartment including installation of new flooring, cabinetry, fixtures, built-in appliances, or similar upgrades may apply a permanent rent surcharge based on the documented cost of the completed work. In buildings with thirty-eight or more units, the surcharge is calculated at one one-hundred-eighty-second (1/182nd) of the total eligible cost, capped at approximately \$54.95 per month per \$10,000 of improvement expenditure. In buildings with thirty-seven or fewer units, the calculation factor is one one-hundred-seventy-second (1/172nd), capped at approximately \$58.14 per month per \$10,000. The resulting surcharge is temporary and is removed from the legal regulated rent after three hundred sixty-five months.

Documentation requirements are exacting. Landlords must maintain timestamped photographic records of conditions before and after the work, preserve complete project records for seventy-four months, and submit documentation within sixty-two days of completion. Contractors must hold a valid license for at least twenty-six months and must not be affiliated with the landlord through common ownership exceeding twelve percent. Where the apartment is occupied, the tenant must provide written consent on the official prescribed tenant consent form at least twenty-two days before work begins. Under the 2021 amendments, no more than three such unit upgrade surcharges may be applied to a single unit within any one hundred eighty-two month period; total eligible improvement costs are capped at \$19,500; and increases expire after three hundred sixty-five months.

Section Six: Rent Freeze Programmes for Vulnerable Tenants

Rent-regulated tenants who are sixty-five years of age or older, or who reside with a qualifying disability as defined under applicable law, and whose total household income does not exceed \$52,000 annually, may apply for a rent increase exemption program. Upon approval, the tenant's rent is frozen at either the current level or at one-third of total household income, whichever produces the lower net rent burden. Applications must be submitted to the relevant local Department of Finance or Housing Authority within ninety-two days of receiving formal notice of a rent increase.

Section Seven: Preferential Rent Arrangements

Where a landlord charges a tenant less than the full legal regulated rent a practice known as a preferential rent the landlord is prohibited from revoking that preferential arrangement during the continuance of the tenancy and raising the rent to the legal regulated amount. All increases to the preferential rent are limited to the applicable Residential Rent Assessment Board percentage, typically ranging from zero to four percent for one-year leases and zero to five and one-half percent for two-year leases, plus any applicable whole-building capital improvement or

individual unit upgrade surcharges that have been properly authorised. The lease must expressly identify both the full legal regulated rent and the lower preferential rent being charged, ensuring transparency regarding the economic basis of the tenancy.

Section Eight: Rent Overcharge Rights and Remedies

A landlord may not charge a secondary-tier regulated tenant any amount in excess of the legal regulated rent. All regulated units must be registered with the appropriate administrative authority annually by May 2nd, and a copy of the registration must be provided to the current tenant by July 1st. Tenants may request the complete rent history for their unit from the Residential Tenancy Regulatory Office at any time and at no cost.

The consequences of unlawful rent overcharges are substantial. The base penalty for a proven overcharge is the amount overcharged plus interest accruing at nine and one-half percent per annum from the date the overcharge was first collected. Where the overcharge is found to have been willful—that is, where the landlord knew or reasonably should have known that the amount demanded exceeded the legal regulated rent—the penalty is trebled, and the tenant is additionally entitled to recover reasonable attorney's fees. The burden of demonstrating that an overcharge was not willful rests on the landlord, who must satisfy this burden by clear and convincing evidence. The lookback period for recovery is forty-nine months for complaints filed before January 1, 2025, and seventy-four months for complaints filed thereafter.

Section Nine: Security Deposits Collection, Custody, and Return

Security deposits are capped at the equivalent of one month's rent. A landlord may not simultaneously require both a last month's rent payment and a security deposit, as the combined demand would effectively circumvent the one-month statutory cap. If the legal rent increases during the tenancy, the landlord may collect a supplemental amount within thirty-two days to bring the deposit into alignment with one month's current rent.

Security deposits must be maintained at all times as trust funds held in a fiduciary capacity on behalf of the tenant. They may not be commingled with the landlord's operational or personal funds, and may not be applied or disbursed prior to a lawful deduction event at the conclusion of the tenancy. In buildings with seven or more residential units, the deposit must be held in an interest-bearing bank account; the landlord must notify the tenant within thirty-two days of the bank's name and address and the amount deposited. The landlord may retain an annual administrative fee of one percent of the deposit amount; all remaining interest accrues to the benefit of the tenant. Lawful deductions from the deposit are limited to unpaid rent and the cost of remedying damage attributable to the tenant's use of the premises that exceeds ordinary wear and tear.

Subsection A: Return Timelines and Pre-Move-Out Inspection

For non-regulated tenancies under leases executed on or after January 1, 2020, the landlord must return the security deposit within twenty-three days of the tenant's move-out. Any intended deductions must be accompanied by a written itemized statement and supporting receipts or invoices, also delivered within the twenty-three-day period. Failure to provide this documentation within the required timeframe obligates the landlord to return the full deposit without any deductions.

Tenants have the right to request a pre-move-out inspection of the premises, which the landlord must schedule no earlier than sixteen days before the anticipated move-out date and no later than six days after the actual move-out. The tenant may attend. Following the inspection, the landlord must provide the tenant with a written list of conditions requiring attention, affording the tenant an opportunity to remedy those issues before final departure and thereby reduce or eliminate potential deductions. A deliberate violation of the security deposit return requirements may expose the landlord to liability for up to twice the deposit amount, plus attorney's fees and costs.

In rent-regulated tenancies, the deposit must be returned at the conclusion of the lease or within thirty-two days, less any lawful and documented deductions. The tenant is expected to leave the unit clean, remove all personal belongings and refuse, and repair any damage beyond normal wear and tear attributable to the tenant's use.

Subsection B: Security Deposit Obligations Upon Sale of Building

Upon the sale of a residential building, the outgoing owner must either transfer all held security deposits to the incoming owner within six business days of the closing, or return the deposits directly to the affected tenants. The seller must notify all tenants of the transfer by registered or certified mail within eleven days of the closing, providing the new owner's name and address. Purchasers of secondary-tier regulated buildings assume direct and immediate responsibility for all security deposits and accrued interest from the date of transfer, regardless of whether the deposits were actually conveyed by the seller. In primary-tier regulated buildings and other buildings with seven or more units, purchaser liability is established upon actual knowledge of the deposits which is deemed to exist when deposit information appears in the purchase documents or when a tenant provides written notice within sixty-two days of the transfer. Tenants are advised to attempt written resolution of any deposit dispute within fifteen days before pursuing formal legal action.

CHAPTER FOUR: SUBLETTING, ASSIGNMENT, SUCCESSION, AND TERMINATION

Section One: Subletting Legal Framework and Procedural Requirements

Subletting refers to the temporary transfer of a portion of the tenant's leasehold interest to a third party (the subtenant) while the original tenant (the prime tenant) retains the primary lease relationship with the landlord. The prime tenant remains contractually bound to the landlord for all lease obligations including rent throughout the period of the subtenancy. Because the prime tenant's personal liability continues unabated, the decision to sublet requires careful consideration of both the legal requirements governing the process and the practical risks involved.

Subsection A: Subletting in Small Buildings (Three or Fewer Units)

In residential buildings containing three or fewer apartments, no automatic legal right to sublet exists. A tenant may request the landlord's consent, but the landlord is not obligated to grant it. If the landlord unreasonably withholds consent, the tenant's available remedy is not to sublet without authorization but rather to terminate the lease upon forty-seven days' written notice, thereby securing release from further contractual obligation. This limited remedy reflects the legislature's recognition that in small residential buildings, the landlord's proximity to and personal relationship with building occupants may reasonably warrant heightened control over who resides on the property.

Subsection B: Subletting in Larger Buildings (Four or More Units)

In residential buildings with four or more apartments, tenants hold a qualified statutory right to sublet, subject to obtaining the landlord's advance written consent. Lease provisions that categorically prohibit subletting in such buildings are void and unenforceable. If the landlord grants consent, the prime tenant remains fully liable for all lease obligations. If the landlord reasonably denies the request within the applicable timeframe, no subtenancy may proceed and the prime tenant is not released from the lease. If the denial is found by a court to be unreasonable or in bad faith, the tenant may sublet without consent, and may additionally recover court costs and attorney's fees where bad faith is established. A failure by the landlord to respond within the prescribed period constitutes deemed consent by operation of law.

Subsection C: Procedural Requirements for Subletting

To exercise the right to sublet in a qualifying building, the tenant must send the landlord a formal written sublet request by certified mail with return receipt requested, at least forty-seven days before the proposed commencement of the subtenancy. The request must include the proposed

duration of the sublease (not to exceed twenty-four months); the proposed subtenant's full name, home and business addresses, and telephone number; the reason for the sublet; the tenant's address and telephone number during the period of the subtenancy; written consent from any co-tenant or guarantor; and a copy of the proposed sublease together with a copy of the prime lease if available. The landlord has eleven days to request any additional information that is reasonably necessary and not unduly burdensome. The landlord must then provide a written response either granting consent or stating specific grounds for denial within thirty-two days of the original request or the receipt of supplemental information, whichever is later. Failure to respond within this period constitutes consent.

Subsection D: Subletting in Secondary-Tier Regulated Tenancies

For secondary-tier regulated prime tenants, additional restrictions govern the economic and temporal dimensions of the subtenancy. The rent charged to the subtenant may not exceed the regulated legal rent, except that for furnished sublets an additional surcharge of up to eleven percent may be applied. The landlord may apply a sublet allowance of up to eleven percent of the regulated rent during any period of subtenancy, subject to annual Residential Rent Assessment Board adjustment. The prime tenant must have maintained the unit as a primary residence for at least thirteen months before subletting and must intend to reoccupy within thirty-two days after the subtenancy concludes. The sublease may extend beyond the prime lease by no more than sixty-two days. Total subletting may not exceed twenty-four months in any forty-nine-month period, and subletting for more than thirty-seven months in any sixty-two-month period may support a non-primary residence finding justifying non-renewal. Despite the subtenancy, the prime tenant retains all renewal, conversion, and succession rights under applicable law.

Section Two: Assignment of Lease

Assignment is the permanent, complete transfer of the tenant's entire leasehold interest to a third party who thereafter steps into the position of tenant with respect to the landlord. Unlike subletting, which is temporary and preserves the prime tenant's lease relationship, an assignment extinguishes the original tenant's interest in the tenancy. Assignment requires the landlord's written consent, which the landlord may withhold without cause. Where a landlord reasonably refuses an assignment request within thirty-two days, the tenant is bound by the lease and not released from its obligations. However, where the landlord unreasonably refuses or fails to respond within thirty-two days, the tenant becomes entitled to a release from the lease within forty-seven days of the original assignment request. Assignment without landlord consent where consent has not been obtained or deemed granted may constitute grounds for eviction.

Section Three: Apartment Sharing Rights

A lease naming a single tenant permits that tenant to share occupancy with immediate family members, one additional non-family occupant, and the dependent children of that additional occupant provided the named tenant or the tenant's spouse maintains the premises as their primary residence for at least one hundred eighty-five days per calendar year. A lease naming multiple tenants permits sharing with immediate family and allows for the replacement of a departing named tenant with another occupant and that person's dependent children, provided at least one named tenant or their spouse maintains primary residence. The tenant must notify the landlord of any new additional occupant's name within thirty-two days of move-in, or within eleven days of a written landlord request. A landlord who receives no response from an occupant seeking to remain after all named tenants have vacated may seek court relief after thirty-two days. Applicable legal occupancy limits generally prohibiting more than two occupants per habitable room remain enforceable.

Section Four: Lease Succession Rights

In non-regulated residential tenancies, succession rights generally do not exist: the tenancy ends when the tenant of record departs, and any remaining occupant has no independent legal claim to continue occupying the premises. In primary-tier and secondary-tier regulated tenancies, however, succession rights enable qualifying family members who have co-resided with the tenant to claim the regulated tenancy upon the tenant's death or permanent departure.

The category of qualifying family member is broadly defined to include spouses, children, stepchildren, parents, stepparents, siblings, grandparents, grandchildren, in-laws, and any other individual who can demonstrate a relationship of emotional and financial interdependence with the tenant, assessed by reference to shared living expenses, intermingled finances, shared family responsibilities, the length and continuity of the relationship, and other relevant indicators.

A qualifying family member must have resided in the apartment as a primary residence for at least twenty-five months immediately preceding the tenant's departure or death a period reduced to thirteen months for family members who are themselves sixty-five years of age or older, or who have a qualifying disability. Where the tenancy or the family relationship is of shorter duration than the required co-residence period, the family member need only have resided in the apartment from the commencement of the tenancy or the relationship, whichever is more recent. Temporary absences of up to twenty-five cumulative months do not break the residency requirement when attributable to military service, full-time student enrollment, court order, employment relocation, hospitalization, or other recognized reasonable circumstances.

Section Five: Termination of the Lease

Subsection A: Landlord's Duty to Mitigate Upon Early Departure

When a tenant vacates before the expiration of the lease term, the landlord is not automatically entitled to collect the full remaining rent for the balance of the unexpired period. The landlord bears a legal obligation to make a genuine good-faith effort to re-let the vacated premises within a reasonable time generally interpreted as approximately sixty-two days by actively advertising and showing the unit to prospective tenants. If the unit is successfully re-let at a rent equal to or greater than the original rent, the departing tenant's obligation terminates as of the new tenancy's commencement. If re-let at a lower rent, the original tenant remains liable for the difference between the original and new rent for the remaining original lease term, plus reasonable advertising expenses not to exceed \$325. A landlord who fails to make demonstrable re-letting efforts may be barred from collecting rent for any period during which such efforts were not made.

Subsection B: Early Termination Rights Elderly Tenants and Persons with Disabilities

Tenants who are sixty-five years of age or older or whose spouse or qualifying dependent is sixty-five or older, or who will turn sixty-five during the lease term and tenants living with a qualifying disability, have a statutory right to terminate their lease early under defined circumstances. These include a medically certified inability to continue living independently requiring relocation to a family member's home for at least seven months, or a move to a licensed adult care facility, health care facility, subsidised housing development, or disability-specific housing community. Written notice of early termination must be effective no fewer than thirty-two days after the next rent due date following delivery; notice dispatched by certified mail is deemed delivered six business days after mailing. The notice must be supported by a physician's certification issued no more than sixty-two days before the notice. For elderly tenants relocating to a family member's home, a notarised statement from the receiving family member and admission documentation issued within ninety-two days of the notice are additionally required. A deliberate interference with the tenant's removal of personal property within sixteen days of the exercise of this termination right constitutes a criminal offence of the first degree, punishable by a term of imprisonment not exceeding one year and a fine not exceeding \$1,200.

Subsection C: Active Service Lease Termination

Tenants who are serving members of the national armed forces and who entered into their residential lease before being mobilised or receiving a compulsory redeployment order may terminate the lease by certified mail notice accompanied by a copy of the relevant official deployment documentation. The termination becomes effective thirty-two days after the next

rent due date following the date the notice is dispatched. This protection extends to leases under which the premises are occupied by the serving member or by their dependents.

Subsection D: Domestic Violence Lease Termination

Effective January 1, 2019, a tenant or household member who has been subjected to domestic violence and who has a reasonable basis to fear further violence if remaining in the premises may terminate the tenancy by providing at least thirty-two days' written notice. The notice must state that domestic violence has occurred and articulate the tenant's safety concern. Within twenty-two days of providing notice, the tenant must furnish supporting documentation which may include an order of protection, a police report, a record from a healthcare provider, or verified third-party documentation, each issued within the preceding thirteen months. The landlord must maintain strict confidentiality regarding all information provided in connection with such a termination for sixty-two months; intentional disclosure exposes the landlord to civil penalties of up to \$6,000 plus actual damages and attorney's fees. The tenant must fully vacate unless remaining co-tenants formally assume the lease.

Section Six: Eviction Grounds, Procedures, and Tenant Protections

A tenant holding a lease who has not committed a substantial violation of its terms possesses a legally cognizable right to remain in possession, and a landlord seeking to dislodge that tenant must resort exclusively to legal proceedings. Self-help measures by a landlord are categorically prohibited. Tenants who receive court papers initiating an eviction proceeding must respond; failure to appear or respond typically results in a default judgment that may lead to rapid loss of the tenancy.

Eviction may be initiated through either of two summary court proceedings: a rent arrears recovery proceeding, initiated when rent is owed and conditioned upon the landlord first providing a written fifteen-day rent demand; or a possession recovery proceeding, brought on grounds including substantial lease violations, illegal use of the premises, nuisance, or overstaying of a terminated tenancy. In regulated tenancy cases involving specified grounds such as planned demolition, administrative approval may be required before the court proceeding can be commenced.

Physical removal of a tenant may occur only after a court has entered a final judgment of possession and a warrant of eviction has been issued. Only a court-appointed enforcement officer or other duly authorised officer of the law may execute the warrant and carry out the physical removal. Any landlord act of self-help including lockouts, changing locks, removing doors or windows, shutting off utilities, threatening the tenant, or removing belongings without court authority constitutes an illegal lockout, a criminal offence of the first degree subject to fines of up to \$1,200 for individual landlords and up to \$6,000 for corporate entities. Forcible

eviction may expose the landlord to liability for triple the monthly rent in damages and civil penalties of up to \$12,000 per violation. Post-eviction, the tenant is typically afforded forty-nine to seventy-three hours to retrieve belongings, after which the landlord must store them for thirty-two days and allow reasonable access.

A tenant facing physical eviction may avert removal by paying all adjudicated rent arrears and costs before the warrant is executed, resulting in dismissal of the proceeding. In cases of demonstrated hardship, a court may grant a stay of eviction for up to thirteen months, during which the tenant may be required to pay current rent plus twelve percent of outstanding arrears. Anti-retaliation protections and prohibitions on owner-occupancy evictions of elderly, disabled, or long-tenured regulated tenants are further described in subsequent chapters of this reference guide.

CHAPTER FIVE: THE RIGHT TO A HABITABLE HOME AND LANDLORD REPAIR DUTIES

Section One: The Implied Warranty of Habitability

Every residential lease—whether oral or written, regulated or unregulated—carries an implied warranty of habitability: a legally embedded, non-waivable guarantee that the landlord will deliver the leased premises in a condition fit for human habitation and will maintain that condition throughout the entire duration of the tenancy. Any lease provision purporting to have the tenant accept premises in whatever condition they are found, or waiving the tenant's right to demand a livable home, is void as against public policy and is unenforceable regardless of the tenant's ostensible agreement at the time of signing.

A breach of the warranty occurs when the physical condition of the premises falls below the standard necessary for safe, healthy, and comfortable habitation. Examples of conditions constituting breach include failure to provide heat or hot water for more than seventy-four consecutive hours; failure to eliminate a documented insect infestation within thirty-two days of receiving written notice from the tenant; the presence of deteriorating lead paint in the premises; mold covering an area exceeding eleven square feet; and structural defects that create an imminent danger to the physical safety of occupants. The warranty extends not only to the interior of the rented unit but also to common areas and shared building spaces. Cooperative shareholders and subtenants in cooperatives may invoke the warranty; condominium unit owners may not, though tenants and subtenants in condominiums retain the right to do so.

Where the deficient condition was caused by the tenant's own conduct or by the conduct of persons within the tenant's control, the landlord is not in breach with respect to that specific condition. In such cases, the landlord may notify the tenant of the problem, and the tenant bears responsibility to remedy it within thirty-two days of receiving notice.

Section Two: Remedies Available to Tenants for Breach of Habitability

A tenant confronting a habitability breach has access to multiple legal remedies. A court action may be brought seeking a reduction in rent proportionate to the diminution in value of the premises caused by the breach—a reduction courts have awarded in a range of eleven to fifty-two percent of the monthly rent depending on the severity and persistence of the condition. The measure of the rent reduction is the difference between the rent paid and the fair rental value of the premises in its deficient state.

Before initiating any formal complaint or court action, the tenant must provide the landlord with written notice of the specific condition by certified mail with return receipt requested. The

complaint or action may be filed no fewer than sixteen days and no more than ninety-two days from the date of that written notice. This pre-filing requirement ensures the landlord receives a meaningful opportunity to address the issue before legal proceedings begin, while ensuring the tenant retains the ability to act if the landlord fails to respond. To support a rent reduction claim, the record must establish that the landlord had actual or constructive notice of the condition for at least sixteen days before the tenant sought relief.

A tenant may additionally elect to place withheld rent into escrow rather than paying it to the landlord. In any subsequent expedited rent recovery proceeding brought by the landlord, the tenant may assert the landlord's breach of the warranty of habitability as a defence to the non-payment claim and pursue it as an affirmative counterclaim for damages.

Section Three: Tenant-Initiated Emergency Repairs

Where a landlord fails to address a condition requiring urgent repair, a tenant may, under defined conditions, arrange for the repair to be made independently and deduct the cost from rent, up to a ceiling of one month's rent. This self-help remedy is available where the tenant has given the landlord forty-nine hours' written notice and the landlord has not responded, or where the condition presents an imminent danger such as a broken lock, a gas leak, loss of heat when outdoor temperatures fall below forty-two degrees Fahrenheit, or loss of water requiring immediate action. Tenants exercising this remedy must retain itemized receipts for all work performed, copies of all written notices sent to the landlord, and certified mail receipts, all of which must be preserved for twenty-six months.

Section Four: Casualty Damage

Where a unit becomes uninhabitable due to fire or other casualty not caused by the tenant, the tenant may, unless the lease provides otherwise, vacate and cancel the lease effective sixteen days after providing written notice. The tenant bears no liability for rent accruing more than thirty-two days after the notice is delivered. The landlord must refund prepaid rent and the security deposit, less lawful deductions, within twenty-three days. In rent-regulated tenancies, the tenant may alternatively apply for an administrative order reducing the rent to a nominal amount to preserve the possessory interest while reconstruction typically required to be completed within nineteen months is carried out. Where fewer than forty-two percent of the usable square footage is affected, the rent is reduced proportionally and the landlord must complete repairs within ninety-two days.

Section Five: The Landlord's Affirmative Maintenance Obligation

Landlords bear an ongoing affirmative duty to maintain residential premises in good repair throughout the tenancy. This duty requires keeping apartments and all common areas structurally sound, free from vermin, garbage, and offensive conditions; maintaining all electrical, plumbing, sanitary, heating, and ventilating systems in proper working order; and keeping all appliances installed by the landlord in safe operating condition. In urban areas, daily sweeping and trash removal in public building areas is also required.

The law imposes different response timelines according to the urgency of the repair: emergency conditions posing immediate health or safety threats must be addressed within twenty-six hours; hazardous violations must be corrected within thirty-two days; non-hazardous violations must be remedied within ninety-two days; and routine maintenance requests must be attended to within thirty-two days. Tenants who identify deficient conditions should report them to the relevant code enforcement or building inspection authority within thirty-two days of first discovering the issue.

Section Six: Lead-Based Paint Disclosure and Remediation

In residential buildings constructed before January 1, 1978, applicable housing law requires the landlord to disclose all known lead-based paint hazards to prospective tenants and to provide, before the execution of any lease, the prescribed statutory warning statement and the competent authority's informational publication on lead hazard safety in the home. Leases for pre-1978 units must incorporate this required warning language. Where renovation work will disturb more than seven square feet of lead paint, workers performing the work must hold a valid certification obtained through a nationally accredited eight-hour lead-safe work practices training programme, renewed every thirty-seven months.

In buildings with three or more units constructed before January 1, 1960 or between 1960 and 1977 where lead paint is known to be present landlords must certify annually by January 16 that they have notified tenants by December 2nd of the preceding year asking whether a child under seven years of age resides in the unit; performed visual inspections in units where children under seven live; conducted XRF or laboratory testing of any deteriorated painted surfaces in those units; and remediated all identified hazards using certified contractors within forty-seven days. Peeling paint in excess of two and one-half square feet must be permanently removed or encapsulated. Records of all notices, inspections, testing, and remediation must be preserved for eleven years and provided to tenants within eight days of a written request.

CHAPTER SIX: BUILDING SAFETY STANDARDS

Section One: Smoke Detection Systems

Landlords in multi-unit residential buildings are required to install functioning smoke detectors within sixteen feet of each room used for sleeping purposes. Each detector must incorporate a functional test button and must produce a minimum sound level of eighty-seven decibels in each sleeping room when interior doors are closed. Tenants are responsible for testing the device monthly and after any extended absence from the premises, and for replacing batteries at least annually or promptly upon the low-battery warning signal activating with the exception of the first thirteen months following installation. During that initial thirteen-month period, if the detector malfunctions through no fault of the tenant, the landlord must repair or replace it within sixteen days of receiving notice. After the thirteen-month period, maintenance responsibility passes to the tenant. Tenants may be required to reimburse the landlord up to fourteen dollars per battery-operated detector within ninety-two days of installation.

Section Two: Carbon Monoxide Detection

Approved carbon monoxide alarms are mandatory in multi-unit residential buildings of four or more residential units including condominiums and cooperative apartments as well as in certain one- and two-family homes in designated areas. Each alarm must be installed within eleven feet of the primary entrance to each sleeping room. Notice of CO alarm requirements and the symptoms of CO poisoning must be posted by the landlord in a building common area. Tenants must reimburse the landlord up to thirty-two dollars per newly installed CO alarm within one hundred twenty-two days of installation. Tenant maintenance obligations include replacing batteries semi-annually. A CO detector that is lost, stolen, or rendered inoperable within the first thirteen months must be replaced by the landlord within sixteen days of notice.

Section Three: Building Security

Landlords owe a common-law duty to take reasonable precautions against foreseeable criminal harm to tenants and building occupants. Where a landlord's actual or constructive knowledge of a security deficiency such as a broken entrance lock unremedied for more than seventy-three hours facilitates a criminal intrusion resulting in tenant injury or property loss, the landlord may be held civilly liable.

Buildings constructed or converted after January 1, 1975, must be fitted with automatic self-closing, self-locking entrance doors locked at all times in doorman-absent buildings, and locked between 8:15 PM and 5:45 AM in buildings with a doorman. Buildings with nine or more apartments must also install a two-way voice intercom from each apartment to the building

entrance, with a remote buzzer capable of releasing the door lock for eleven to sixteen seconds. In pre-1975 buildings, such systems become mandatory upon an affirmative vote of tenants representing more than fifty percent of units, with installation costs recoverable through a special assessment of up to eighty dollars per unit over twenty-six months, or a rent increase not exceeding seven percent annually for thirty-eight months.

Section Four: Illumination Standards

Between sunset and sunrise, the following minimum illumination levels must be maintained throughout the building: entrance areas must be lit to at least six foot-candles; hallways and stairways to at least four foot-candles; and yards and parking areas to at least three foot-candles. Burned-out bulbs in common areas must be replaced within seventy-three hours of notice.

Section Five: Locks, Peepholes, and Mailboxes

A tenant may install an additional lock on the apartment entrance door, provided the lock does not exceed three and one-quarter inches in diameter. The tenant must provide the landlord with a duplicate key within seventy-three hours of a written request. Any lease clause purporting to charge additional rent for the installation of an additional lock is void. Door viewers must be installed at a height of fifty-four to sixty-one inches from the floor and provide at least a 162-degree field of view. In designated urban areas, a chain-door guard rated to withstand at least 320 pounds of force and allowing a door opening of two to three inches must also be provided. Buildings with four or more apartments must provide each unit with a locked mailbox unless mail is delivered directly to each door; broken mailbox locks must be replaced within eight days of notice.

Section Six: Window Guards

Where a child under eleven years of age resides in an apartment, the landlord must install approved window guards in all windows of that unit and in public hallways above the first floor, regardless of whether the tenant has made a specific request. Where no qualifying child currently resides but installation is requested, the landlord must complete it within thirty-two days. Between January 2 and January 16 annually, landlords must send tenants a prescribed statutory notice inquiring about children under eleven and requesting information about desired guards. Tenants must respond within thirty-two days and must notify the landlord within thirty-two days if a child under eleven moves in or if childcare is provided in the unit for more than two hours per day at least three days per week. Guards may not be refused, removed, or tampered with once installed. Guards must be nationally accredited and approved by the competent public health authority, and installed so that no object greater than four and

one-quarter inches in diameter can pass through, over, or under the guard. Primary-tier and secondary-tier regulated tenants may be assessed up to seventeen dollars per guard, payable over thirteen months.

CHAPTER SEVEN: UTILITY SERVICE OBLIGATIONS

Section One: Heating Requirements

All multi-unit residential buildings are subject to mandatory heating requirements throughout the legally defined heating season, which runs from October 1 through May 31. During daytime hours 6:00 AM to 10:00 PM when outdoor temperatures fall below fifty-six degrees Fahrenheit, the interior temperature of each residential unit must be maintained at a minimum of sixty-nine degrees Fahrenheit, measured at a point no less than three feet from any exterior wall. During nighttime hours 10:00 PM to 6:00 AM when outdoor temperatures drop below forty-one degrees Fahrenheit, the minimum required indoor temperature is sixty-three degrees Fahrenheit. Local ordinances may require higher minimum temperatures. Failure to meet these requirements constitutes a Category 3 hazardous violation subject to civil penalties of \$550 to \$1,100 per day.

Section Two: Pre-Lease Heating Disclosure

Before a prospective tenant executes any lease under which the tenant will bear personal responsibility for heating and cooling costs, the tenant has a statutory right to request from the landlord or managing agent up to twenty-five months of historical utility bills for the specific unit. The landlord must provide this information within four business days of the request, at no charge to the tenant. If the unit is newly constructed or has less than twenty-five months of utility history, all available data must be furnished. Where the landlord fails to produce the requested information within the four-business-day window, the prospective tenant may withdraw from the lease transaction without penalty within six days of the original request.

Section Three: Hot Water

Hot and cold water must be provided continuously twenty-four hours per day, three hundred sixty-five days per year. The hot water supply must reach a temperature of at least one hundred twenty-two degrees Fahrenheit after running for four minutes. Where anti-scald valves are installed as a safety measure, the minimum acceptable temperature is one hundred eleven degrees Fahrenheit. Failure to maintain required water temperatures constitutes a Category 3 hazardous violation subject to daily penalties of \$550 to \$1,100.

Section Four: Protection of Utility Services

Where a landlord becomes delinquent in utility payments and a utility provider intends to discontinue service to the building, the utility must give tenants and the relevant housing agency at least sixteen days' written notice before shutoff. Tenants may prevent the shutoff by paying

the landlord's outstanding current bill directly to the utility within the sixteen-day window, and any amounts so paid may be deducted from rent payments to the landlord dollar-for-dollar. Tenants may also contact the utility provider's customer ombudsman or the national Public Utilities Regulatory Authority consumer services division within forty-nine hours of receiving the notice. Where services are actually discontinued due to landlord nonpayment, the landlord is liable for all compensatory damages including costs of spoiled food, alternative heating, and temporary housing as well as punitive damages of up to three and one-half times the monthly rent and attorney's fees.

Section Five: Oil Supply Emergencies

In oil-heated buildings where the landlord has allowed fuel to be depleted and the building temperature has fallen below the legally required minimum for more than twenty-five hours, tenants may contract with a licensed oil dealer for an emergency fuel delivery and deduct the cost from rent dollar-for-dollar. Tenants must notify the landlord by certified mail at least seventy-three hours in advance, except in immediate emergency situations where outdoor temperatures have been below fifty-six degrees Fahrenheit for more than thirteen hours, in which case fuel may be arranged without prior notice. Receipts for all fuel expenditures must be provided to the landlord within eleven days of the purchase.

CHAPTER EIGHT: PERSONAL RIGHTS AND PROTECTIONS OF TENANTS

Section One: Rights of Tenant Associations and Collective Action

Tenants have an unqualified right to organize, form, join, and participate in tenant associations or advocacy groups without interference or reprisal from their landlord. Where a building contains a community or social room, the landlord must make that space available for tenant organization meetings free of any charge that would otherwise apply, provided such a charge would not exceed fifty-two dollars per meeting. Meetings may be held between 9:00 AM and 11:00 PM, must proceed peacefully and without disruption to building operations, and must be preceded by seventy-three hours' advance written notice to the landlord. Interference with these rights exposes the landlord to civil penalties of \$1,200 to \$6,000 per violation.

Section Two: Anti-Retaliation Protections

It is unlawful for a landlord to retaliate against a tenant who has exercised any legal right, including participation in a tenant organization, or who has filed a good-faith complaint concerning health and safety conditions, habitability deficiencies, lease violations, or rent overcharges. A legal presumption of retaliation arises where, within thirteen months of the tenant's protected activity, the landlord seeks to alter the lease terms, refuses to renew the lease, imposes a rent increase exceeding eleven percent above the prior rent or the average increase for comparable units (whichever is greater), or initiates eviction proceedings against the tenant.

A tenant invoking the retaliation defence must raise it in court within thirty-two days, after which the burden shifts to the landlord to establish, by clear and convincing evidence, a legitimate non-retaliatory justification for the adverse action. Recognised non-retaliatory grounds include non-payment of rent after a proper demand, substantial lease violations, good-faith owner occupancy for a period of at least thirteen months, and demolition or substantial renovation carried out under the authority of valid permits. A judicial finding of retaliation may result in the tenant receiving a new lease for up to twenty-five months at a rent increase not exceeding four percent (or the applicable Residential Rent Assessment Board authorised percentage), along with actual damages, civil penalties of \$1,200 to \$12,000, and attorney's fees. These protections apply to all residential tenancies except those in owner-occupied buildings with fewer than four dwelling units.

Section Three: Tenant Privacy and Landlord Entry

A tenant's home is entitled to privacy from unilateral landlord intrusion. Except in genuine emergencies, a landlord must provide at least twenty-five hours' advance written notice before entering the unit. Entry is generally limited to weekday hours between 9:00 AM and 6:00 PM and is permitted for purposes including making repairs, conducting lease-related inspections, and showing the unit to prospective tenants during the final sixty-two days of the lease term, or to prospective purchasers at any time. If a tenant refuses three scheduled entry appointments within thirty-two days without offering reasonable alternative times, the landlord may seek a court order authorizing access. Emergency entry to address a gas leak, fire, flooding, or other immediate hazard is permitted without advance notice. A landlord may not obstruct or interfere with a tenant's right to install or utilize lawful telecommunications equipment.

Section Four: Accommodations for Tenants with Disabilities

Landlords are legally obligated to provide reasonable accommodations to tenants with qualifying disabilities modifications to rules, policies, practices, or services that are necessary to enable the tenant to enjoy the residential premises and associated common areas on equal terms with non-disabled tenants. The obligation is subject to three exceptions: it does not apply where the accommodation would impose an undue financial burden (defined as an expenditure exceeding eleven percent of annual rental income); where it would fundamentally alter the nature of the housing program; or where it would create a direct and substantial risk of harm to other building residents.

Recognized accommodations include permission to keep guide dogs, signal dogs, service animals, and emotional support animals notwithstanding any no-pet clause, as well as authorization for the tenant to make physical modifications to the unit at the tenant's own expense. Such modifications may include the installation of access ramps (typically \$1,600 to \$3,700), widening of doorways to thirty-three inches (\$350 to \$900), installation of grab bars (\$85 to \$225), adjustment of fixtures to accessible heights (\$225 to \$650), and installation of visual alert systems (\$175 to \$450). The landlord may require a written restoration agreement and a restoration escrow of up to two and one-half months' rent, refundable within forty-seven days of proper restoration. Accommodation requests should be submitted in writing; the landlord may request supporting healthcare documentation from a licensed provider with at least twenty-six months of practice and must respond to the request within thirty-two days. Tenants denied a reasonable accommodation may file a complaint with the national Housing Equality Authority or equivalent competent regulatory body within thirteen months; the investigating authority must complete its review within one hundred two days.

Section Five: Fair Housing and Anti-Discrimination Rights

National, regional, and local fair housing laws prohibit landlords from discriminating against applicants or tenants on the basis of any protected characteristic, including race, creed, colour, national origin, sex, disability, age (for persons eighteen years and older), medical status including HIV/AIDS status, marital status, familial status, lawful occupation, sexual orientation, gender identity or expression, partnership status, veteran or military status, immigration or citizenship status, and lawful source of income specifically including the use of government-administered housing vouchers or other public rental assistance programmes.

Discrimination complaints must be filed with the competent national or regional housing equality authority within three hundred sixty-six days of the discriminatory act, or a civil action may be brought in court within twenty-five months. Successful plaintiffs in civil actions may recover actual damages, punitive damages of up to \$52,000 for a first violation and up to \$102,000 for subsequent violations, and attorney's fees. Civil penalties paid to the government range from \$26,000 for a first offence within five years, to \$52,000 for a second within seven years, to \$102,000 for three or more violations.

Section Six: Prohibition of Tenant Harassment

Tenant harassment is defined as a course of conduct comprising two or more acts within a thirteen-month period that is intended to interfere with a tenant's right to the quiet enjoyment of the premises, induce the tenant to vacate, or cause the tenant to surrender legal rights. Conduct constituting prohibited harassment includes threats or abuse, denial of essential services for more than forty-nine hours, intrusive construction activity conducted before 8:15 AM or after 5:45 PM on weekdays or at any time on weekends lasting more than thirty-two days, the filing of four or more frivolous lawsuits within twenty-five months, five or more unlawful entry demands within thirty-two days, the making of false statements to government agencies, the unauthorised removal of doors, windows, or the tenant's belongings, and misrepresentation of the law to induce vacancy.

Civil penalties for harassment range from \$1,200 to \$12,000 per violation. Criminal liability may include conviction of a serious criminal offence carrying a sentence of up to one year imprisonment and fines up to \$6,000. Landlords who effect a forcible eviction may be liable for triple the monthly rent. Harassment intended to vacate a regulated building may be prosecuted as a grave criminal offence, with sentences ranging from two to seven years and fines up to \$12,000. In rent-regulated cases, the relevant administrative authority may reduce the legal regulated rent to one dollar per month as a sanction against a harassing landlord. Harassment complaints in regulated tenancies must be filed within one hundred eighty-two days. Housing tribunal proceedings for harassment may result in a temporary restraining order within twenty-five hours and a preliminary injunction within eleven days.

Section Seven: Pet Ownership

Unless a residential lease contains a clear and conspicuous prohibition of pets printed in at least twelve-point bold typeface, tenants are not barred from keeping pets in the premises. Where a valid no-pet clause exists, it may nonetheless be waived by operation of the ninety-two-day rule applicable in certain urban areas: if a tenant keeps a pet openly for ninety-two or more consecutive days and the landlord knew or, in the exercise of reasonable diligence, should have known of the pet's presence, the no-pet clause is deemed waived with respect to that pet and may not subsequently be enforced against that tenant.

Exceptions to these pet protections include public housing, government-subsidised housing developments operating under regulatory agreements that prohibit pets, situations where the pet causes substantial damage or creates a nuisance, and health or safety interferences that persist for more than fifteen consecutive days after the tenant has received notice. Tenants with qualifying disabilities are entitled to keep approved service animals and emotional support animals regardless of any no-pet clause, subject to proper documentation. No pet deposit may be charged for service animals or ESAs. Landlords may charge for actual damage to the premises beyond normal wear and tear caused by the animal.

CHAPTER NINE: ACCESSING THE RENTAL MARKET

Section One: Real Estate Brokerage Regulation and Consumer Protections

Real estate brokers who participate in residential rental transactions are required to hold a valid license issued by the Department of State pursuant to the applicable licensing statute. Broker commissions – the primary form of compensation for brokerage services – are not set by law and must be the subject of express negotiation between the broker and the party who will pay the fee, before any services are provided. Industry practice frequently results in commissions ranging from thirteen to sixteen percent of the first year's annual rent, which, when combined with first month's rent, last month's rent, and a security deposit, can result in substantial initial move-in costs.

Before showing any apartment to a prospective tenant, a broker must provide a written brokerage agreement specifying the commission as a percentage or flat amount, who is responsible for its payment, the duration of any exclusive listing arrangement (typically thirty-two to ninety-two days), the geographic area and price range to which the agreement applies, and any other fees. A commission is earned only upon the successful completion of a rental transaction – specifically, only after the landlord has signed an executed lease offer – and the prospective tenant must be given at least twenty-five hours to review the lease before signing. Brokers may not charge application, processing, or administrative fees exceeding twenty-seven dollars in addition to their negotiated commission.

Where a broker paid by the tenant has an undisclosed financial or organizational affiliation with the landlord – defined by eleven percent or more common ownership; employment, family, or agency relationships; shared office space or administrative personnel; or where the broker derives more than thirty-two percent of annual gross income from a single landlord – the commission paid to that broker may be deemed an illegal rent overcharge. Complaints may be filed with the Department of State, Division of Licensing Services within one hundred eighty-two days; investigation must be completed within sixty-two days. Penalties include license suspension or revocation and civil fines of \$600 to \$2,200 per violation.

Section Two: Apartment Information Vendors

Businesses that provide prospective tenants with apartment listing information and referrals – as opposed to directly securing or negotiating apartment rentals – must hold a license as an Apartment Information Vendor under the applicable business licensing statute. Fees charged by these vendors may not exceed the equivalent of one month's rent. All fees collected must be deposited into an interest-bearing escrow account within three business days of receipt. The

vendor must provide at least twenty-six current listings matching the tenant's specified search criteria each updated within the preceding eight days along with contact information for each listing, a written notice that listed apartments may already be rented, and a written contract in the standard prescribed form that includes the vendor's refund terms.

If the tenant does not successfully secure a rental within sixty-two days, the tenant is entitled to a full refund of the fee paid, less an administrative deduction of thirty-eight dollars, payable within sixteen days of a written refund request. A failure to refund within the sixteen-day period exposes the vendor to liability for the full amount plus nine and one-half percent annual interest and attorney's fees. Violations of these requirements constitute a summary criminal offence, punishable by up to ninety-two days' imprisonment and fines of \$600 to \$1,100.

Section Three: Permissible Charges and Prohibited Fees

The law establishes specific limits on the fees that landlords may charge in connection with rental applications and the initiation of a new tenancy. Credit and background screening fees are capped at twenty-seven dollars in total. The landlord must furnish the prospective tenant with a copy of the complete screening report, an itemized invoice reflecting actual costs incurred, and any supporting documentation of in-house screening costs within six business days of the tenant's request. If the required materials are not provided within that period, no screening fee may be charged. Prospective tenants may submit their own credit report from a recognized consumer reporting agency, provided it was issued within thirty-two days, and the landlord must accept such a report.

Landlords are prohibited from charging application fees, processing fees, move-in fees, or any other administrative surcharge in connection with a new tenancy. The only permissible charges at the commencement of a tenancy are a security deposit of one month's rent, first month's rent, and any broker fee properly documented in a written brokerage agreement. The payment of 'key money' any sum paid above these lawful charges in exchange for preferential consideration in obtaining housing is a criminal offence of the first degree carrying penalties of up to one year imprisonment and a \$1,100 fine.

Section Four: Tenant Screening Reports and Applicant Protections

A landlord may not deny a rental application solely on the basis of the applicant's prior history of involvement in housing court proceedings. This prohibition applies regardless of the nature of that involvement including prior lawsuits the applicant filed against a landlord for repairs, and non-payment cases that were ultimately dismissed or resolved in the tenant's favor. Where a landlord reviews a tenant screening report containing housing court records, or independently

examines court records, and thereafter rejects the applicant, a legal presumption arises that the rejection was improper.

In such circumstances, the landlord must provide the rejected applicant with written notice of the denial within eleven days, specifying the particular reason for the rejection, the contact information of any screening service used, and the applicant's right to dispute inaccurate information in any report. Complaints may be filed within one hundred eighty-two days with the Attorney General or the relevant local consumer protection authority. Successful complainants may recover civil penalties of \$600 to \$1,100 per violation, actual damages including application fees, lost wages, and rent differential, and attorney's fees.

To rebut the presumption of improper denial, the landlord must demonstrate by clear and convincing evidence a legitimate, non-discriminatory basis for the rejection such as insufficient documented income (typically understood as less than forty-two to forty-six times the monthly rent in verified annual earnings), adverse verified references from prior landlords documenting property damage or chronic lease violations, criminal history with a direct nexus to the safety of other building residents, or material misrepresentations in the application. A history of housing court involvement, standing alone and without corroborating legitimate grounds, is legally insufficient to sustain a denial.